

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

July 28, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5.**

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Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV431703	Pingping Xiu et.al. vs. Dinggang Xu, et.al.	Defendant moves this court to award attorney fees in the amount of \$5303.85. Plaintiff failed to show up at her noticed deposition in March, 2026. Plaintiff did not oppose this motion for attorney fees. Defendant's motion is GRANTED.
9:00 2	24CV434917	Darcel Stoner vs. SCA of CA, LLC	See below.
9:00 3	24CV436120	Kelly Maycock vs. Matthew Santiago, et.al.	Plaintiff petitions this court to compel further production of documents. RFP 77, 78, 83, 85, and 127 requesting all communications between Plaintiff and various employees are overbroad. Therefore, Plaintiff's petition to compel those documents are DENIED. Likewise, RFP 142 requesting reports from each part time supervisor who worked at the UPS location in Sunnyvale is overbroad. Therefore, Plaintiff's petition to compel those documents are DENIED. Request no. 94 and 110 which ask for documents pertaining to Mr. Santiago's departure from UPS are deemed relevant. Therefore, Plaintiff's petition to compel those documents are GRANTED. UPS' responses to RFP No. 71, 72, 76, 79, 80, 81, 86, 87, 88, 90, 92, 95, 96, 98, 99, 100, 102, 103, 104, 106, 107, 114, 115, 117, 118, 121, 122, 123, 124, 125, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, and 140 are sufficient; therefore, Plaintiff's petition to compel those documents are DENIED. Supplemental responses to RFP No. 91, 93, 97, 104, 111, 112, and 113 are GRANTED. Given that there have been several meet and confer meetings between Plaintiff and Defendants, Plaintiff's motion for monetary damages are DENIED.
9:00 4	24CV450640	Courtney Williams vs. FCA US, LLC, et.al.	Plaintiff petitions this to compel defendant's to produce documents it promised to comply with. Plaintiff propounded a request for production of documents. Defendant promised to comply. Defendant has failed to comply with its own promise to produce documents for over one year. Defendant has not objected to Defendant's petition. Plaintiff's petition is GRANTED. Plaintiff's motion for monetary sanctions for the amount of time Plaintiff spent preparing the motion is GRANTED.
9:00 5	24CV453902	Sukhi Sander vs. Ford Motor Company	Defendant moves this court for summary adjudication against Plaintiff's complaint. Plaintiff filed no objection. Summary adjudication as to Plaintiff's sixth cause of action is GRANTED.
9:00 6	25CV465436	Villa Montanas vs. Garrett Kolb	Case off calendar
9:00 7	25CV468878	Gabrielle Hubbard vs. Ford Motor Company	See below
9:00 8	25CV474036	Mohammed Zarghami vs Sara Falaha	See below.
9:00 9	25CV480230	Edward Duarte vs. FCA US, LLC, et.al.	Plaintiff moves this court to compel Defendant to produce initial disclosures pursuant to CCP section 871.26. Defendant argues that disclosures required by CCP section 871.26 have indeed been produced. Plaintiff argues that Defendant has failed to provide CAIR records, PDI/NVP records, wiTech Diagnostic Data, Service Manuals, verified statement that ISB's does not exist, confirmation as to whether all "Trouble Not Found" claims for the Subject VIN have been produced. This court finds that such disclosures are required by CCP section 871.26 and need to be produced if in fact they exist. Plaintiff's petition is GRANTED.

9:00 10	25CV480504	Amanda Butler vs. Steven Cohen, et.al.	Case off calendar
9:00 11	24CV443183	Shenna Huynh vs. REDIS LABS, Inc.	Plaintiff moves this court for monetary and terminating sanctions. Plaintiff argues that Defendant and counsel have not complied with this Court's order to serve verified supplemental response without objection, provide a privilege log, identify the documents responsive to each request, and submit a declaration addressing Slack preservation. Defendant admits that there are discrepancies with Bates misnumbering the privilege log. Defendant now admits that Slack data has been maintained since January 21, 2021 when it earlier represented that Slack data had not been preserved. Defendant asserts that it has been attempting in good faith to rectify its shortcomings. This court finds Defendant's response to be of much concern; however it does note that Defendant appears to be attempting to respond to a voluminous discovery request albeit late. Plaintiff's motion for monetary sanctions in the amount of \$10,320 against Defendants is GRANTED. Plaintiff's motion for terminating sanctions is DENIED.
9:01 1	25CV482021	AVNET, INC.,et. al. vs AMPERE COMPUTING, LLC, et.al.	Jonathan Brinson moves this court to accept his pro hac vice application to appear as counsel for Plaintiff. There is no opposition to Mr. Bronson's application. Mr. Bronson's application is GRANTED.

Calendar Line 2

Case Name: *Darcel Stoner v. SCA of CA, LLC*

Case No.: 24CV434917

Defendant SCA of CA, LLC ("SCA") has brought a motion for judgment on the pleadings ("JOP motion") as to the complaint filed by plaintiff Darcel Stoner ("Stoner"). A JOP motion "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired.

The court GRANTS judicial notice of Exhibit 1 to SCA's request for judicial notice. (SCA's Request for Judicial Notice ("SCA RJN"), Ex. 1.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*) [truth of contents of court records cannot be judicially noticed].)

The court GRANTS judicial notice of Exhibits 1 and 2 to Stoner's request for judicial notice. (Stoner's Request for Judicial Notice ("Stoner RJN"), Exs. 1, 2; see Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh, supra*, 53 Cal.App.5th at pp. 79-81.)

According to SCA, in 2023 Stoner filed a putative class action that remains pending. (Memorandum of Points and Authorities in Support of JOP Motion ("MPA"), p. 6:3-6; see SCA RJN, Ex. 1.) SCA argues that the present action "repackages" the failure to pay allegations at

issue in the 2023 suit, and therefore the court should grant SCA's JOP motion under California's primary rights doctrine. (MPA, p. 6:13-20.)

The primary right theory is a theory of code pleading that has long been followed in California. It provides that a "cause of action" is comprised of a "primary right" of the plaintiff, a corresponding "primary duty" of the defendant, and a wrongful act by the defendant constituting a breach of that duty. The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a single cause of action. A pleading that states the violation of one primary right in two causes of action contravenes the rule against "splitting" a cause of action.

(*Crowley v. Katleman* (1994) 8 Cal.4th 666, 681 (*Crowley*), internal citations omitted.)

Crowley further states that:

The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement; or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata. The latter application of the primary right theory appears to be most common: numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory or seeks a different remedy.

(*Crowley, supra*, 8 Cal.4th at p. 682, internal citations omitted.)

In "determining whether more than one primary right is invaded," the court looks "to the harm suffered rather than the legal theory asserted by a plaintiff. [T]he 'cause of action' is based upon the harm suffered, as opposed to the particular theory asserted by the litigant. Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief." (*Stoner v. Williams* (1996) 46 Cal.App.4th 986, 1003, internal citations and quotation marks omitted, emphasis original). As the court discusses in more detail below, it "*is well settled that a claim alleging employment discrimination in violation of FEHA is based on a plaintiff's distinct primary right to be free from discrimination.*" (*Henderson v. Newport-Mesa Unified School Dist.* (2013) 214 Cal.App.4th 478, 502 (*Henderson*), emphasis added.)

The complaints in the present action and the 2023 punitive class action allege different harms suffered. The complaint in this action seeks redress for lost earnings, employment benefits, humiliation, emotional distress, mental and physical pain, and punitive damages on the basis of alleged discrimination and failure to prevent discrimination. (Complaint, ¶¶ 48, 51-62.) In contrast, the 2023 putative class action brought by Stoner alleges causes of action under the California Labor Code and California's unfair competition law (the "UCL"). (SCA RJN, Ex. 1

at ¶¶ 56-73; Stoner RJN, Ex. 1 at ¶¶ 71-109.) These are distinct harms. In *Barrett v. Superior Court* (1990) 222 Cal.App.3d 1176 (*Barrett*), for example, the plaintiffs brought four causes of action for negligence, strict liability, breach of implied warranty, and wrongful death, all on the basis of “the injury they had suffered as a result of the wrongful death of the decedent . . . the four ‘causes of action’ were actually counts based on the same primary right of plaintiffs and the same primary duty of defendants, each of which merely alleged additional circumstances out of which the primary right and primary duty arose.” (*Barrett, supra*, 222 Cal.App.3d at pp. 1181-1182, internal citations omitted.) Here, the complaint alleges harms suffered as a result of discrimination—lost earnings, emotional distress, and mental and physical pain and anguish—while the 2023 punitive class action alleges liability under the UCL and California Labor Code and seeks injunctive relief and unpaid wages.

Henderson is informative. In *Henderson*, the plaintiff, a teacher, sued the defendant, a school district, alleging discrimination under FEHA. (*Henderson, supra*, 214 Cal.App.4th at p. 484.) The trial court sustained the defendant’s demurrer to the plaintiff’s FEHA cause of action on the basis that it was barred by the doctrine of res judicata. (*Ibid.*) The trial court “reasoned that both claims were founded on the same primary right placed at issue in [an] earlier administrative proceeding. . . . In the trial court’s view, the primary right at issue in both the administrative proceeding and the claims Henderson currently asserts was her right to be ‘reemployed for the 2010/2011 school year.’” (*Id.* at p. 499.) The Court of Appeal disagreed. A “plaintiff’s primary right is defined by the *legally protected interest* which is harmed by defendant’s wrongful act, and is not necessarily coextensive with the *consequence* of that wrongful act. Nor is it defined by the *remedy* the plaintiff seeks. . . . [I]t is well settled that a claim alleging employment discrimination in violation of FEHA is based on a plaintiff’s distinct primary right to be free from discrimination.” (*Henderson, supra*, 214 Cal.App.4th at pp. 499-502, internal citations and quotation marks omitted, emphasis original.)

The court reiterates that it “is well settled that a claim alleging employment discrimination in violation of FEHA is based on a plaintiff’s distinct primary right to be free from discrimination.” (*Henderson, supra*, 214 Cal.App.4th at p. 502; see also *ibid.* [“Because Henderson’s cause of action alleging the District discriminated against her on the basis of race in violation of FEHA was based on her distinct primary right to be free from such discrimination—a right which was not adjudicated in the earlier administrative proceeding—that cause of action is not barred by res judicata.”].) According to SCA, a “particularly instructive” decision is *Lane v. Stausboll* (N.D. Cal. Apr. 28, 2011) 2011 U.S. Dist. LEXIS 47697 (*Lane*). (MPA, p. 12:3-23.) In *Lane*, the plaintiff filed suit against representatives of the California Public Employee’s Retirement System (“CalPERS”) alleging that CalPERS miscalculated the plaintiff’s pension payments. (*Lane, supra*, LEXIS 47697 at p. 1.) The Northern District of California found that the plaintiff’s “primary right” was “his right to have his pension calculated according to law.” (*Id.* at p. 12.) In a previous action, the plaintiff argued that CalPERS “should have calculated his pension according to [Government Code section] 20035(a).” (*Id.* at p. 17.) In the lawsuit at issue, the plaintiff then argued that CalPERS “should have calculated his pension according to [Government Code section] 31461.3(a).” (*Ibid.*) The Northern District of California found that the alleged harm to the plaintiff was “based on CalPERS’s calculation of his pension using 12 months instead of 7.5 months, and this is exactly the issue that was taken up during the state proceedings.” (*Id.* at p. 19.) Here, the complaint alleges discrimination under FEHA on the

basis that SCA employed Stoner as a “street sweeper operator” and, on the basis of his race, paid other street sweeping employees more and transferred Stoner to other cities for street sweeping work to demote Stoner and avoid paying him “prevailing wage rates.” (Complaint, ¶¶ 21-32, 43-54.) Following *Henderson*, this is a different primary right than any at issue in the 2023 putative class action, and therefore the court finds that *Lane*, and, for that matter, much of the authority discussed by SCA in its memorandum, is distinguishable. (MPA, pp. 12:24-14:9.)

For similar reasons, the court is also not persuaded by the decisions cited by SCA on reply. (SCA’s Reply in Support of JOP Motion, pp. 7:8-9:24.) For example, the plaintiff in *Balasubramanian v. San Diego Community College Dist.* (2000) 80 Cal.App.4th 977 (*Balasubramanian*) sued the defendant in federal court, alleging employment discrimination and breach of contract. (*Balasubramanian*, *supra*, 80 Cal.App.4th at pp. 981-982.) After trial, a jury found in favor of the defendant on the plaintiff’s discrimination claims, but the court dismissed the claim for breach of contract. (*Id.* at p. 982.) The plaintiff then brought an action for breach of contract in state court. (*Ibid.*) The trial court granted the defendant’s motion for summary judgment as to the plaintiff’s breach of contract cause of action on the grounds that it was barred by the doctrine of res judicata, and the Court of Appeal affirmed. (*Id.* at p. 982, 992-993.) The Court of Appeal held that the plaintiff’s “claims in both federal and state court resulted from [the defendant’s] failure to hire her as assistant professor.” (*Id.* at p. 992.) “Although [the plaintiff’s] theory in federal court was discrimination and her theory in state court was breach of contract, both actions involved the primary right to be employed by [the defendant].” (*Ibid.*, internal citations omitted.) The decision does not address the circumstances here, i.e., the primary right underlying a FEHA cause of action—a “plaintiff’s distinct primary right to be free from discrimination.” (*Henderson*, *supra*, 214 Cal.App.4th at p. 502.)

The court acknowledges SCA’s point regarding the potential for overlapping damages. (MPA, pp. 17:1-18:24.) “A well-established principle, applied both at law and in equity, is that a plaintiff is entitled to only a single recovery for a distinct harm suffered, and double or duplicative recovery for the same harm is prohibited.” (*Renda v. Nevarez* (2014) 223 Cal.App.4th 1231, 1237 (*Renda*), internal citation omitted.) The complaint seeks damages for lost earnings and employment benefits; the 2023 putative class action alleges, among other things, a “failure to pay prevailing wages.” (Complaint, ¶¶ 51, 59; SCA RJN, Ex. 1 at ¶¶ 56-64, 71; Stoner RJN, Ex. 1 at ¶¶ 71-81.)

Nevertheless, the court is inclined to agree with Stoner’s argument in opposition that while “California law prohibits double recovery for the same injury . . . that principle does not mean every case with some overlap in economic damages must be dismissed at the pleadings stage.” (Opposition, p. 9:12-18, internal citations omitted.) SCA does not provide the court with any authority indicating otherwise.

In fact, the court notes that the authorities cited by SCA in its memorandum concern the Court of Appeal addressing issues related to a trial court’s determination of damages, not whether a court can determine a pleading challenge on the basis of the primary right theory and potential issues surrounding double recovery. (*Sass v. Cohen* (2019) 32 Cal.App.5th 1032, 1035 [“Applying these principles, the default judgment awarding compensatory damages of \$2,806,532 . . . we remand to the trial court . . .”]; *Renda*, *supra*, 223 Cal.App.4th at p. 1234

[“After the jury returned its verdict, Renda submitted a proposed judgment . . . Nevarez objected on the grounds . . . [that] such a judgment would amount to an impermissible double recovery to the creditor.”]; *Sanchez v. Martinez* (2020) 54 Cal.App.5th 535, 540 [“Both parties now raise various challenges to the trial court’s calculation of damages and penalties. . . .”]; *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1595 [“In response to defendants’ motion for new trial, the superior court entered an amended judgment . . . Defendants appeal from both the original and amended judgments.”].) As to *City of Moorpark v. Superior Court* (1998) 18 Cal.4th 1143 (*Moorpark*), the Court of Appeal noted that “employees who settle their claims for lost wages and work benefits as part of a section 132a proceeding could not recover these damages as part of a subsequent FEHA proceeding.” (*Moorpark, supra*, 18 Cal.4th at p. 1158.) It did not hold that a party could not bring a FEHA cause of action on the basis of potentially overlapping damages.

The court DENIES SCA’s JOP motion.

Calendar Line 9

Case Name: Gabrielle Hubbard v. Ford Motor Company et al.

Case No.: 25CV468878

Plaintiff Gabrielle Hubbard (Plaintiff) purchased a 2022 Ford Bronco Sport (Subject Vehicle) in September 2022 from Ford of Chula Vista (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued Dealership and Ford Motor Company in June 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A at p. 5.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 5.) Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.* Ex. A at p. 1.) The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Id.*, Ex. A at p. 6.) Plaintiff’s signature on those sections of the RISC indicates express assent to

the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.” ’ ”].)

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:19-4:11.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Dealership has shown a valid agreement to arbitrate.

The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A at p. 5.) Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies

to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:7-9.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126.) By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff’s claims.

The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership’s arguments on those points.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective.” (Reply at p. 8:25-27.) Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

CONCLUSION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The court will prepare the order.

Calendar Line 8

Case Name: *Zarghami v. Falaha*

Case No.: 25CV474036

According to the allegations of the first amended complaint (“FAC”), plaintiff Mohamad H. Zarghami (“Plaintiff”) and defendant Sara Falaha (“Defendant”) were married and share a minor child, and are parties in the Family Law matter *Falaha v. Zarghami* (Super. Ct. County of Santa Clara, 2024, No. 24FL002138). (See FAC, ¶ 6.) Between May 2025 and the March 5, 2026 filing of the FAC, Defendant recorded no less than twelve confidential communications between them using an electronic amplifying or recording device without Plaintiff’s consent, in violation of Penal Code section 632(a). (See FAC, ¶¶ 7-18.) Further, Defendant hired a private investigator to follow Plaintiff and monitor who entered and exited his home, and arranged for surveillance of Plaintiff’s home without Plaintiff’s consent, even when Plaintiff did not have custody of his daughter. (See FAC, ¶ 19.) Defendant obtained intimate photographs of Plaintiff with a woman in the bedroom of his home and also had Plaintiff followed and videotaped without his consent. (See FAC, ¶ 20.) Defendant also monitored Plaintiff’s location through a GPS tracker, and through his laptop, documenting where he went and where he stayed overnight, without his consent and when Plaintiff was not with his daughter pursuant to their custody agreement. (See FAC, ¶ 21.) Defendant has threatened to release Plaintiff’s private information and photographs and videos of Plaintiff to their community for the purpose of shaming him.

(See FAC, ¶ 22.) On August 25, 2025, Plaintiff was granted a domestic violence restraining order (“DVRO”) against Defendant for the above acts. (See FAC, ¶ 23.)

On March 5, 2026, Plaintiff filed the FAC against Defendant, asserting the following causes of action:

- 1) Statutory damages for invasion of privacy pursuant to Penal Code sections 637.2;
- 2) Invasion of privacy;
- 3) intentional infliction of emotional distress; and,
- 4) declaratory relief/permanent injunction.

Defendant specially moves to strike the FAC pursuant to Code of Civil Procedure section 425.16.

I. DEFENDANT TAAGHOL’S SPECIAL MOTION TO STRIKE THE FAC PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

In *Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, the California Supreme Court established the trial court’s duty in ruling on an anti-SLAPP motion to strike:

Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant’s burden is to demonstrate that the act or acts of which the plaintiff complains were taken ‘in furtherance of the [defendant]’s right of petition or free speech under the United States or California Constitution in connection with a public issue,’ as defined in the statute. [Citation.] If the court finds [that defendant has made its threshold showing], it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’

(*Id.* at 67.)

“[I]n order to establish the requisite probability of prevailing [citation], the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’” (*Navellier v. Sletten* (2002) 29 Cal. 4th 82, 88, quoting *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal. 4th 1106, 1123.) “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Id.* at 88-89, quoting *Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) “In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant (§ 425.16, subd. (b)(2)); though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim.” (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) “To show a likelihood of success, ‘[t]he plaintiff's showing of facts must consist of evidence that would be admissible at trial.’” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1368.) “The plaintiff may not rely on the allegations in the complaint or assertions in a declaration based on information and belief.” (*Id.*)

Defendant fails to make a threshold showing that the complaint arises from protected activity.

Defendant asserts that the acts complained of—her recording of conversations, tracking of Plaintiff's location, hiring of a private investigator and surveillance of Plaintiff, obtaining of intimate photos of Plaintiff and submission of these items—are protected activity pursuant to Code of Civil Procedure section 425.16, because they “concern conduct during the course of litigation.” (Def.'s memorandum of points and authorities in support of special motion to strike the FAC (“Def.'s memo”), p.9:12-18.) While Defendant does not cite to which subdivision of subdivision (e) the alleged acts fall under, she largely relies on *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228. In *Huntingdon*, *supra*, the defendant encouraged demonstrations against animal testing and supported “those who choose to operate outside the confines of the legal system” on its website, and as a consequence, defendant's activists vandalized the plaintiff's employee's home and her husband's car. (*Huntingdon*, *supra*, 129 Cal.App.4th at pp.1240-1245.) The *Huntingdon* court determined that the causes of action arose from speech that took place in a public forum and concerned “animal testing... an area of widespread public concern and controversy, and the viewpoint of animal rights activists contributes to the public debate” and as “Plaintiffs do not assert that either the public interest or public forum criterion is unsatisfied,” it concluded that the causes of action

arose from protected activity pursuant to section 425.16, subdivisions (e)(3) and (e)(4). (*Id.* at pp.1246-1247 (also stating that “[t]he ‘public interest’ component of section 425.16, subdivision (e)(3) and (4) is met when ‘the statement or activity precipitating the claim involved a topic of widespread public interest,’ and ‘the statement ... in some manner itself contribute[s] to the public debate’ ... [c]ommenting on a matter of public concern is a classic form of speech that lies at the heart of the First Amendment... [s]tatements on SHAC USA’s Web site are accessible to anyone who chooses to visit the site, and thus they ‘hardly could be more public’”).)

Here, the alleged acts are neither statements made in a public forum nor commenting on a matter of public concern, nor contributing to the public debate on such a matter. *Huntingdon* is inapposite.

Defendant instead concludes that she “was collecting evidence for the present litigation by hiring a private investigator and exercising rights per a stipulated order” and thus demonstrates that the causes of action arise from protected activity. However, the protective order does not authorize much of the alleged conduct. With regards to the alleged recording of conversations, the stipulation’s only mention of recording is with regards to the security camera in the child’s bedroom in which it states that “[i]f the camera has an option to block audio recording and/or transmission, then that feature must be activated at all times without exception... [and i]f the camera does not have an option to block audio, then Respondent may place a piece of gum or equivalent on the microphone without causing any visual impairment or video limitation to block the audio” (Kirchick decl. in support of special motion to strike, exh. A (“stipulation”), ¶ 4, subpara. b), and with “conduct during pickups and dropoffs” (*id.* at ¶ 15). The stipulation neither concerns the monitoring of who might come in and out of Plaintiff’s home, nor surveillance with visibility into Plaintiff’s home, tracking of visitors and activity inside when Plaintiff did not have custody of the daughter, nor monitoring of Plaintiff’s location through a GPS tracker or Plaintiff’s laptop when not with his daughter, nor the release of private information, photographs and videos of Plaintiff for the purpose of shaming him. The stipulation does state that “[b]oth parties shall keep location tracking active on their phones and share access with the other party at all times”; however, it also states that “[t]he Parties conduct towards each other... shall be peaceful and respectful at all times... includ[ing] not accessing each other’s personal and private information... [n]either party shall access remotely, electronically, or otherwise the other’s cell phone... or other accounts without prior written consent or otherwise stated in this agreement.” (*Id.* at ¶ 2, subparas. b-c, ¶ 9.) Defendant’s other evidence in support of the motion are text messages between Plaintiff, a supplemental declaration regarding coercive control, religious pressure and boundary violations following the stipulation, a statement regarding SIM card, device functionality and Wi-Fi connectivity, and a discussion regarding the stipulation; this evidence does not demonstrate that the alleged acts arise from protected activity. Defendant’s evidence submitted with her motion fails to meet her threshold burden to demonstrate that the causes of action arise from protected activity.

Subsequent to filing her motion, Defendant filed her own supplemental declaration, denying the allegations and stating that “[t]he only reason that [she] hired a private investigator was to secure evidence that [she] intended to use to present [her] case at trial in this matter.” (Def.’s supplemental decl. in support of special motion to strike, ¶ 3.) As Defendant states that she was attempting to obtain evidence to eventually present her case at trial, this neither concerns any written or oral statement or writing made before a judicial proceeding, nor any written or oral statement or writing made in connection with an issue under consideration or review by a judicial body, and thus cannot be an “act in furtherance of a person’s right of petition” pursuant to Code of Civil Procedure section 425.16, subdivision (e)(1) or (e)(2). Nor is it a written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest pursuant to subdivision (e)(3).

Further, as previously stated, in her supplemental declaration, Defendant also denies most of the alleged acts. (*Id.* at ¶¶ 3-7 (stating “I never asked the private investigator to do anything illegal nor did I ask the private investigator to go inside Mr. Zarghami's home.... I never asked the private investigator to take inappropriate photographs or video of Mr. Zarghami.... I do not have intimate photographs of Mr. Zarghami and another woman in my possession, custody or control.... All of the photographs that my private investigator gave to me from Mr. Zarghami's residence were taken from outside of Mr. Zarghami's residence.... I do not intend to damage Mr. Zarghami's reputation.... I have not engaged in any unlawful conduct as to any of the allegations that Mr. Zarghami has made against me in his August 25, 2025 Request for Domestic Violence Restraining Order.... I do not concede that I have committed any illegal act and adamantly dispute that I have committed any illegal act.... I did not track Mr. Zarghami's location on his laptop without his consent.... I did not record any mediation sessions in this matter”).) The denial of the allegations is essentially a concession that the alleged acts do not constitute protected activity and does not in any event demonstrate that the allegations are not protected activity. (See *Malin v. Singer* (2013) 217 Cal.App.4th 1283, 1303-1304 (stating that “[a] showing that a defendant did not do an alleged activity is not a showing that the alleged activity is a protected activity... [e]ven if we were to accept Arazm and Singer’s assertion that they are innocent of the criminal computer hacking and wiretapping allegations, their claim is ‘more suited to the second step of an anti-SLAPP motion’”); see also *Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193 Cal.App.4th 435, 446-447 (stating that “[a] showing that a defendant did not do an alleged activity is not a showing that the alleged activity is a protected activity... section 425.16 was not enacted to protect an attorney who allegedly hired an ‘investigator’ like Anthony Pellicano to wiretap telephones... [the] causes of action alleging that Gaims engaged in wiretapping activity do not fall within the protective ambit of the anti-SLAPP statute”); see also *Simmons v. Bauer Media Group USA, LLC* (2020) 50 Cal.App.5th 1037, 1046-1047 (stating that “section 425.16 cannot be invoked by a defendant whose assertedly protected activity is illegal as a matter of law and, for that reason, not protected by constitutional guarantees of free speech and petition... ‘it would eviscerate the first step of the two-step inquiry set forth in the statute if the defendant’s mere assertion that his underlying activity was constitutionally protected sufficed to shift the burden to the plaintiff to establish a probability of prevailing... where a defendant brings a motion to strike under section 425.16 based on a claim that the plaintiff’s action arises from activity by the defendant in furtherance of the defendant's exercise of protected speech or

petition rights, but either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff's action... [h]ere, Bauer concedes Mathews's placement and use of the tracking device was illegal and not protected speech... [b]ut it insists it merely hired Mathews to take photographs, not illegally place a tracking device... [t]hat assertion, however, contradicts allegations in the first amended complaint that Bauer hired Mathews and LA Intelligence both to stake out the hospital during Simmons's visit and to track and report on Simmons's whereabouts... [t]his factual dispute goes to the merits of plaintiffs' claims and is not relevant to the first prong of the anti-SLAPP inquiry").) The principal thrust of the allegations of the FAC do not suggest any protected activity. (See *Baharian-Mehr v. Smith* (2010) 189 Cal.App.4th 265, 272 (stating that "we decide whether the challenged claims arise from acts in furtherance of the defendant's right of free speech or right of petition under one of the four categories set forth in section 425.16, subdivision (e)... [i]n doing so, we 'examine the principal thrust or gravamen of a plaintiff's cause of action to determine whether the anti-SLAPP statute applies... [w]e assess the principal thrust by identifying '[t]he allegedly wrongful and injury-producing conduct... that provides the foundation for the claim'").) Defendant fails to demonstrate that the FAC's causes of action arise from protected activity.

Accordingly, Defendant's special motion to strike the complaint is DENIED.

As Defendant fails to demonstrate that the alleged actions of which Plaintiffs complains were taken in furtherance of his "right of petition or free speech under the United States or California Constitution in connection with a public issue," as defined in the statute, the Court need not determine whether Plaintiff has demonstrated a probability of prevailing on his claims.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.